Information Sharing Protocol

Facilitating information sharing between Brent Council, Rescue and Response partners and all London Boroughs, in order to contribute to the identification of young people being exploited through County Lines, and the identification of risk to the young people linked to the Rescue and Response project

Title & Version	Purpose specific information sharing protocol between the various partners of the Brent Rescue and Response Project (Pan London) and all London Boroughs [1]
Author	Brent Local Authority
Organisation	London Borough of Brent
Summary/Purpose	Joint Data Controller data sharing. There are various acts of parliament which provide the legal power to share information in the right circumstance. This protocol formalises **how** information will be shared between the various partners of the Rescue and Response Project and all London Boroughs. The project covers any young people who live in London and have been identified as being exploited through County Lines.

Version 1 – October 2018
Owner: Information Governance Group
Review Date: October 2018

1 Introduction

This protocol is an agreement between the following parties to share personal information held on police and local authority databases on a regular basis.

This document is not a legally binding document. It aims to provide the basis for an agreement between the agencies and other organisations engaged in the Rescue and Response project to facilitate and govern the efficient, effective and secure sharing of good quality information. It sets out:

- The principles underpinning information sharing
- The general purposes for information sharing
- The responsibilities and commitments of partners to this agreement
- The arrangements for monitoring and review

This protocol aligns with all other protocols to which agencies may already be signatories and does not in any way supersede those existing agreements.

It is not intended that this document be definitive or exhaustive, it is recognised that as policy develops and implementation arrangements mature, this protocol will need to be reviewed and amended in light of new information sharing requirements to ensure that it is 'fit for purpose'.

As this protocol aims to provide a set of guiding principles for information sharing within the context of the Rescue and Response project to which partners can sign up, its purpose is not to be specific. It is a key principle of this agreement that this protocol should be underpinned by a series of specific data sharing agreements that detail the specific data/information sharing requirements between agencies.

2 Policy context

The Rescue and Response project will develop and deliver a support service for young people who are vulnerable and caught up in county lines drug distribution networks across London. This issue brings together gangs, national policing strategy, CSE, trafficking, exploitation and vulnerability; underpinned by a complex range of social and structural disadvantage. The need has been identified but is so far only partly understood and sporadically mapped, with support models untested at any scale.

This project will be the first county lines support service that operates at scale - pan London and for three years. The project includes both support providers and intelligence analysis working together. It is led by a coalition of London boroughs (Brent, Islington, Tower Hamlets and Lewisham) with support from Metropolitan

Police Service special commands and the all London boroughs and highly experienced London based gangs' agencies.

In order for the development of the Rescue and Response project to be successful, it is essential that all agencies and organisations engaged in its development and implementation are empowered and committed to share good quality and relevant information in a responsible and secure way.

This agreement deals with the need to share personal information in order to identify young people from London who are being exploited through County Lines, to then monitor them, support them by referring to voluntary agencies, and possibly conduct enforcement action against those linked to County Lines. This work will take place as part of the Rescue and Response project. It seeks to fulfil the aims and ambitions outlined in the MOPAC Police and Crime Plan for multiple agencies to: work together to keep children and young people safe, prevent violence against women and girls, reduce reoffending and repeat victimisation as well as enabling the Community Safety Partnership to meet its Statutory Obligations. It is intended to focus partnership activity on identifying and supporting young people from London who are being exploited through county lines, as well as targeting those offenders who are linked to county lines exploitation.

Information will be shared in order to make informed decisions about the young people referred to the Rescue and Response project and which agency will provide direct support to those young people. Partner agencies will pool their information together regarding the young people identified as being exploited. The list of young people identified and referred will be: shared with the London borough they reside in, or come from; identified for support either through the Rescue and Response project, or alternative borough based interventions; an assessment made as to their level of engagement with partners and the most appropriate agency provide support intervention. This exchange of information will continue as the young people are supported by the partners of this multi-agency scheme. This will be an ongoing process as young people's risk increases, move geographically, and where relevant, come out of prison. This will mean that there will always be young people who are being considered for the project, move within the project and face removal from the project.

Information shared through the course of a young person being identified and referred to the Rescue and Response project will allow the partnership to:

(a) Gain a complete picture of a young person's support needs, risks, and their engagement with support services, in order to inform choices about further support and or enforcement activity.
(b) Increase in number of young people identified as being exploited across London

(c) Increased engagement with services for those young people referred and engaged.
(d) Better understanding of County Lines and peer and criminal networks associated
(e) Increase in number of Young People identified as being at risk of county lines exploitation
(f) Increased knowledge of the risk for young people associated with county lines/criminal networks
(g) Increased feelings of safety and reduced feelings of vulnerability
(h) Monitor their ongoing progress and engagement with support services and the outcomes of any enforcement activity.
(i) Ensure that partners have the most up to date information when dealing with young people identified and referred.
(j) Ensure that partners have the most up to date information when risk assessing staff encounters with young people.
(k) Ensure effective targeting of support services, intervention programmes and enforcement activity.

The aims and objectives of the Rescue and Response Project is to provide effective support to young people from London being exploited through County Lines programme, and identify young people earlier, in order to:

- Reduce crime
- Safeguard young people earlier
- Reduction in recorded criminal behaviour of the young people referred
- Increase in number of Young People identified as being exploited
- Increased engagement with services
- Better understanding of the problem and networks
- Increase in number of Young people identified as being at risk of county lines exploitation
- Reduce reoffending,
- Make safer communities,
- Improve public confidence in the criminal justice system,

The information sharing under this agreement will allow partners to provide the best range of services to the young people whilst addressing any continuing offending or safeguarding concerns.

3 Scope

As stated above the protocol covers the sharing of information between all agencies and organisations engaged in/or who are identified as holding relevant information for the purposes of developing, implementing, monitoring and evaluating the Rescue and Response project.

A list of signatories is included at Annex A. This is not exhaustive and will be updated regularly as part of the protocol monitoring and review process as required.

The lawful basis for sharing is established in the relevant, specific ISA for the purpose, which sits beneath this protocol (see Section 6 of ISA)

Information will be shared in order to make informed decisions about the young people referred to the Rescue and Response project and which agency will provide direct support to those young people.

Referrals will be made to the Rescue & Response Project Team by agencies across the country, where they concern young people living in London.

Partner agencies will pool their information together regarding the young people identified as being exploited. The list of young people identified and referred will be: shared with the London borough they reside in, or come from; identified for support either through the Rescue and Response project, or alternative borough based interventions; an assessment made as to their level of engagement with partners and the most appropriate agency provide support intervention. This exchange of information will continue as the young people are supported by the partners of this multi-agency scheme. This will be an ongoing process as young people's risk increases, move geographically, and where relevant, come out of prison. This will mean that there will always be young people who are being considered for the project, move within the project and face removal from the project.

Information may be personal or sensitive in nature and may be shared where there is a legal power to do so.

The relevance of the scope of the protocol should be considered as part of a regular monitoring and review process.

4 Purposes for sharing information

Under the terms of this agreement information may be shared for any purpose that supports the development of the Rescue and Response project and that has been agreed within a specific information sharing agreement. In general, information sharing will be required to support the development and operation of the Rescue and Response project.

This may include the following:

- Increase in number of Young people identified as being exploited/at risk of count lines exploitation
- Increased engagement with services for the young people referred and engaged.
- Better understanding of County Lines and peer and criminal networks associated.
- Increased feelings of safety and reduced feelings of vulnerability of those young people engaged through the project.
- Identification of a person's associations to ascertain if they are linked to/at risk from a criminal network
- Identification of a person's aliases to clarify if they are linked to/at risk from a criminal network
- Identification of a criminal network's to identify young people that may be at risk from their criminal activity
- The prevention of crime and disorder
- The detection of Crime
- The protection of vulnerable members of the community

This is not intended to be an exhaustive list as policy changes or delivery approaches mature other purposes may be identified and these will be incorporated into the protocol during the monitoring and review process.

5 Information sharing requirements

Purpose	Type of information	Recipients	Data controller
Increase in number of Young people identified as being exploited/at risk of count lines exploitation	Criminal records Law enforcement records i.e probation/crc details	Law enforcement agencies Health agencies Voluntary sector/commissioned services Local authority	All recipients can be joint data controllers

Better understanding of County Lines and peer and criminal networks associated	Criminal records Local authority records Law enforcement records i.e. probation details Social media	Law enforcement agencies Health agencies Voluntary sector/commissioned services Local Authority	All recipients can be joint data controllers
Identification of a person's associations to ascertain if they are linked to/at risk from a criminal network	Criminal records Law enforcement records i.e. probation details Family data Social media	Law enforcement agencies Health agencies Voluntary sector/commissioned services Local Authority	All recipients can be joint data controllers
The prevention of crime and disorder	Criminal records Mental Health records Substance misuse records Law enforcement records i.e. probation details Financial records i.e. housing benefit claims, JSA claims Family data	Law enforcement agencies Health agencies Substance misuse agencies Voluntary sector/commissioned services Local Authority DWP	All recipients can be joint data controllers
The detection of crime	Criminal records Mental Health records	Law enforcement agencies Health agencies Substance misuse agencies	All recipients can be joint data controllers

	Substance misuse records Law enforcement records i.e. probation details Financial records i.e. housing benefit claims, JSA claims Family data	Voluntary sector/commissioned services Local Authority DWP	
The protection of vulnerable members of the community	Criminal records Mental Health records Substance misuse records Law enforcement records i.e. probation details Financial records i.e. housing benefit claims, JSA claims Family data	Law enforcement agencies Health agencies Voluntary sector/Commissioned services Local Authority DWP	All recipients can be joint data controllers
Identification of a criminal network's to identify young people that may be at risk from their criminal activity	Criminal records Social Media Law enforcement records i.e. probation details	Law enforcement agencies Health agencies Voluntary sector/commissioned services Local Authority	All recipients can be joint data controllers

6 Legislative context

It is essential that all information shared under the terms of this protocol will be done so in compliance with the legislation listed in Section 6 of the ISA.

All aspects of these acts are relevant to the context under this protocol.

In addition, each provider should have an internal operational policy to ensure implementation of appropriate safeguarding processes. These should incorporate the requirement to immediately bring to the attention of the safeguarding and commissioning teams any allegation, complaint or suspicion of abuse by or regarding any service user. This is whether the suspected abuser is employed by the provider, by the council or by any other person.

In addition each agency / organisation signed up to this protocol will have their own legal framework that governs their functions and that sets out the circumstances under which personal and sensitive information may be shared.

It is the responsibility of the individual agency/organisation to ensure that their data sharing transactions undertaken are done so legally and fairly and that they comply with their own legal powers and the legislation detailed above.

All Parties to this agreement shall, from 25 May 2018, comply with its obligations under the General Data Protection Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (the "GDPR"). For the purpose of this clause, a reference in this agreement to the DPA shall from 25 May 2018 be construed as being a reference to the GDPR and any defined terms given the meanings that are ascribed to them in the DPA shall have the meaning given to them in the GDPR. Any reference in this agreement to "sensitive personal data" shall from 25 May 2018 be construed as meaning "special categories of personal data" as referred to in the GDPR.

7 Key principles:

The Partner Organisations recognise that many services cannot be effectively delivered without the exchange of Personal Information across key public sector, private and voluntary organisations.

In signing up to this Protocol the signatories agree and commit to the following principles:

1. This protocol aims to align with individual partner agency statutory, legal and common law duties.
2. This agreement is to be entered into alongside any existing protocols, procedures, policies and guidance to which the partner already adheres and does not supersede them.
3. This protocol will be underpinned by individual data sharing agreements that will govern data sharing transactions between partners.
4. Information will only be used for the purposes stated in this protocol, and as detailed in individual information sharing agreements.
5. Partner agencies comply with the requirements of the Data Protection Act 2018 and in particular the data protection principles.
6. Partner agencies support, endorse and promote the accurate, timely, secure and confidential sharing of information for the purposes stated in this protocol.
7. Where it is agreed that it is necessary to share personal information, it will be shared only on a 'need to know' basis and this will be detailed in the individual information sharing agreements. All other information will be statistical and aggregated.
8. Personal and sensitive information will only be shared under this agreement where there is a statutory power to do so and the conditions for processing as determined in the Data Protection Act 2018 can be met.
9. Agencies agree to ensure that data sharing takes place in accordance with their legal, statutory and common law duties and that responsibility for ensuring that they have adequate notifications, privacy notices, retention schedules, policies, procedures and guidance to do so remains with them.
10. Signatories agree to the roles and responsibilities set out in section 9
11. All information shared shall be classified according to the Government Security Classifications Policy (GSCP). The handling and access of the data shall comply with the requirements of this classification.
12. In the event of a Security Incident, the responsible Partner Organisation should immediately inform the Governing Group and all other affected Partner Organisations (usually the disclosing Partner Organisation(s)) with as many details as known at that time and regularly update the relevant Partner Organisations and Governing Group thereafter, including any subsequent investigation report or remedial actions. Any affected Partner Organisation will

then pass on the information in accordance with incident reporting procedures within their own organisation if appropriate.

13. Partner Organisations will follow the decision tree at Annex C.
14. Information shared pursuant to this Protocol may not be shared with any other organisation not a signatory to this Protocol without prior consent of the relevant Partner Organisation and/or data subject.
15. Each Partner Organisation shall comply with individual rights as defined under the Data Protection Act 2018, Freedom of Information Act 2005 and the Human Rights Act 1998.
16. All information will be supplied in line with the relevant standards for information quality and security. The systems and technical measures used by each Partner Organisation for the sharing of personal information shall be specified in any information sharing agreement.
17. Each Partner Organisation shall minimise the use of paper in sharing and storing information. Information in transit shall be secure and encrypted. Use of removable storage devices shall be prohibited. Paper in transit shall only be undertaken if adequate safeguard are in place and the information is minimised.
18. Use of public WI-FI shall be prohibited.
19. If a Partner Organisation is aware of a material inaccuracy or omission in information that it shares under an Information Sharing Agreement, the Partner Organisation must inform the recipient of that inaccuracy or omission.
20. Each Partner Organisation will nominate a person as a key contact to deal with queries and requests for information under this Protocol.
21. Each Partner Organisation is responsible for putting into place effective procedures to address complaints about data sharing and subject access requests relating directly to this Protocol. Information about these procedures should be made available to data subjects. Any complaints about data sharing relating directly to this Protocol should be directed promptly to the Data Protection Officer or Information Governance Manager of the relevant Partner Organisation.

8 Roles and responsibilities

In signing up to this protocol, the signatories agree to the following roles, responsibilities and actions in order to achieve agreement and sign off' by Rescue and Response strategic board and to ensure that the protocol is maintained appropriately.

Role (only covering key agencies)	Responsibility	Implementation	Date
Rescue and Response team-analysts. Partnership coordinators. Operations manager (Brent employees)	To administer the programme. To gather the information, intelligence gathering, providing the source of personal data	2018	
St Giles Trust case workers (voluntary sector)	Help, support and referrals	2018	
Abianda case workers (voluntary sector)	Help, support and referrals	2018	
Safer London	Help, support and referrals	2018	
All London Borough SPOCs	Data recipients and providers	2018	
Ava	To gather intelligence from social media.	2018	
Empowering Communities	Data controllers (case	2018	

	management system)		

9 Supporting policies:

It is important that partners commit to ensuring that all information sharing is in line with their own existing standards, policy and guidance with reference to:

- Information quality
- Information security
- Data protection
- Confidentiality
- Employee/Staff induction and training

Individual agencies are responsible for detailing their requirements for compliance in their individual information sharing agreements and are responsible for their own processes and procedures to monitor and ensure compliance.

10 Governance, monitoring and review

The review, monitoring and amendment of the protocol will be undertaken by the Governing Group sitting under the Strategic Group. Formal review will be undertaken annually unless legislation or policy changes dictate otherwise.

New parties to this agreement may be included at any time, the formal arrangements for which will be managed by lead boroughs and/or as agreed by the Strategic Group or Lead Borough's Heads of Community Protection.

All amendments to the protocol will be reported to and signed off by the Governing Group sitting under the Strategic Group.

11 Conclusion

This protocol proposes a consistent approach to the sharing of information between partner agencies for the purposes of developing and implementing the Rescue and Response project.

All partners need to be able to balance the conflicting demands between the need to share information with other agencies and the requirement to maintain confidentiality. These conflicting demands are acknowledged by this protocol which provides a basis for partners to be confident that where information is shared it will

be done in a consistent, responsible and secure way for the purpose of safeguarding young people involved with the Rescue and Response project.

12 Annex A Signatories

By signing this document, each Partner Organisation undertakes to implement and adhere to the principles, standards and governance set out in this Protocol, reassuring the other Partner Organisations that personal information will be used and managed only in agreed and appropriate ways.

Each Partner Organisation accepts responsibility for independently or jointly auditing its own compliance with this Protocol and any information sharing agreements in which it is involved on a regular basis (at least annually).

Each party agrees to share information in line with the Data Protection Act 2018 and the Human Rights Act 1998

Initial Sharing Agreement Date:	December 2018

This Information Sharing Protocol has been reviewed by:

Information Governance Manager:	[redacted]
Information Governance Group:	Information Governance Team

If applicable the Data Privacy Impact Assessment has been reviewed by:

Information Governance Manager:	[redacted]

This Information Sharing Protocol is approved by the following leads who retain responsibility for this data sharing:

Review Date:	30.10.2019

Following each review, the signatories will confirm whether this Protocol remains fit for purpose, or whether to recommend amendments to the Partner Organisations.

Signatories:

Agency Name	Address	Contact Details	Authorised Signatory inc job title	Date
Barking and Dagenham Council				
Barnet Council				
Bexley Council				
Brent Council	Brent civic centre, engineers way, London, HA9 0FJ	[redacted] brent.gov.uk	[redacted]	26.10.18
Bromley Council				
Camden Council				
Croydon Council				
Ealing Council				
Enfield Council				
Greenwich Council				
Hackney Council				
Hammersmith & Fulham Council				
Haringey Council				
Harrow Council				
Havering Council				
Hillingdon Council				
Hounslow Council				
Islington Council				
Kensington & Chelsea Council				
Kingston upon Thames Council				
Lambeth Council				
Lewisham Council				
Merton Council				
Newham Council				

Redbridge Council				
Richmond upon Thames Council				
Southwark Council				
Sutton Council				
Tower Hamlets Council				
Waltham Forest Council				
Wandsworth Council				
Westminster Council				
St Giles Trust Council				
Abianda				
Safer London				
NPS				
CRC				
The Children Society				